

The McAlester City Council met in a Regular session on Tuesday, February 13, 2024, at 6:00 P.M. after proper notice and agenda was posted, February 8, 2024, at 5:26 P.M.

Rev. Glen Meyer Trinity Lutheran Church gave the invocation and lead the Pledge of Allegiance.

Call to Order

Mayor Browne called the meeting to order.

Roll Call

Council Roll Call was as follows:

Attending:	Weldon Smith, Justin Few, Chris Stone, Randy Roden, Billy Jack Boatright, Kevin Beaty & John Browne
Absent:	None
Presiding:	John Browne, Mayor
Staff Present:	Brett Brewer, Fire Chief; Jayme Clifton, Community Development Director; Sherri Swift, CFO; Stephanie Mervine, Economic Development Director; Billy Sumner, Tourism Manager; Adrian O’Hanlon, Public Information Officer; Chase Tindle, Airport Manager; Michael Allen, Grants Administrator; Justice Adair, I.T. Computer Support; John Tyler Hammons, City Attorney and Becky Cole, Executive Assistant.

Mayor Browne explained that with the Citizens’ comments on Non-Agenda items, the Council would not be able to discuss anything, only listen to the Citizens’ comments.

Citizens Comments on Non-Agenda Items

Residents may address Council regarding an item that is not listed on the Agenda. Residents must provide their name and address. Council requests that comments be limited to five (5) minutes.

Susan Old, 255 Redbird Dr. and Necia Wolfe, 602 NW Morra addressed the Council expressing their concerns with the MRHC Cancer Center’s operations.

Mayor Browne informed the audience that the City of McAlester has nothing to do with the daily operations of the Hospital. The Council does appoint individuals to the McAlester Regional Health Center Authority Board but that was all that the Council was involved with.

Attorney Hammons informed the audience that by State law the Board of Trustees for the Hospital was a public body, notice of meetings could be found at City Hall and the meetings were open to the public. If that were not happening, he needed to be informed so he could do something about it.

Maureen Harrison, 19 W. Coleman addressed the Council regarding the Hospital’s debt collection policy and the number of citizens that could not pay their Hospital bills.

Richard Bowden, 3016 N. 6th St. addressed the Council regarding the operations of the MRHC Cancer Center and why this matter had not been on a previous Council agenda.

Mayor Browne explained how items were submitted for the agenda.

Tod Bowden, M.D. addressed the Council regarding the operations of the MRHC Cancer Center.

Stephanie Giacomo, 228 W. Stonewall addressed the Council commenting that a Public Trust was more than about money, it was more about business and that was why it was not a for profit corporation, and it was important to keep the capitalism thoughts out of the discussion when it comes to Public Trusts.

Attorney Hammons informed the audience that the next Hospital Board meeting would be on March 6, 2024 at 4:00 P.M. and everyone would be welcome to be there.

Susan Old, 255 Redbud Dr. addressed the Council regarding the MRHCA Board meeting agenda.

Consent Agenda

All matters listed under the Consent Agenda are considered to be routine by the City Council and will be enacted by one motion. There will not be separate discussion of these items. If discussion is desired, that item will be removed from the Consent Agenda and will be considered separately.

- A. Approval of the Minutes from the January 23, 2024, Regular Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- B. Approval of the Minutes from the January 29, 2024, Special Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- C. Approval of the Minutes from January 30, 2024, Special Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- D. Approval of Claims for January 17, 2024, through February 06, 2024 *(Sherri Swift, Chief Financial Officer)* In the following amounts: General Fund - \$99,258.23; Nutrition - \$3,321.75; Landfill Reserve/Sub-Title D - \$9,855.00; Tourism Fund - \$5,060.85; E-911 - \$8,716.67; Economic Development - \$11,271.46; Grants & Contributions - \$2,078.62; CDBG Grants Fund - \$10,125.00; Fleet Maintenance - \$17,811.75; Worker's Compensation - \$1,750.00; CIP Fund - \$94,434.17; Stormwater Fund - \$66,005.27 and Infrastructure Fund - \$8,549.90.
- E. Discussion and possible action, to confirm with the Mayor's appointment of Joshua Amos to the McAlester Library Board for a term to expire December 31, 2028. *(Cora Middleton, City Clerk)*
- F. Discussion and possible action, to concur with the Mayor's reappointment of Ann Walker to the Board of Ethics for a term to expire February 28, 2028. *(Cora Middleton, City Clerk)*
- G. Discussion and possible action on approval of certain costs related to the Fire Department. Funds to be used from the City of McAlester's Fire Department's portion of the county quarter cent excise tax for fire services. *(Brett Brewer, Fire Department)*
- H. Discussion and possible action, on approval of certain costs related to the Fire Department. Funds to be used from the City of McAlester's Fire Department portion of the county quarter cent excise tax for fire services. *(Brett Brewer, Fire Department)*
- I. Discussion and possible action to approve an aircraft hangar lease between the City of McAlester/McAlester Airport Authority and Jeff Wolf. *(Chase Tindle, Airport Manager)*
- J. Discussion and possible action authorizing the Mayor to sign a Lease Agreement with Miller Office Equipment for (1) one copier located at the Water Treatment Plant *(Sherri Swift, Chief Financial Officer)*
- K. Discussion and possible action authorizing the Mayor to sign the Automatic Aid Agreement between the McAlester Fire Department and The Krebs Fire Department. *(Brett Brewer, Fire Chief)*

Councilman Few moved to approve the Consent Agenda. The motion was seconded by Vice-Mayor Smith, and the vote was taken as follows:

AYE: Councilmembers Few, Smith, Roden, Boatright, Beaty, Stone & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

Scheduled Business

1. Discussion and possible action for a resolution for a Use Permit After Review in the Wade Watts Corridor Development for the use of the property at 1204, 1206, 1210 E Wade Watts Avenue, described as the West 10 feet of Lot One (1), All of Lot Two (2), and All of Lot Three (3), Block Four hundred fifty-five (455), In the City of McAlester, formerly known as South McAlester, Pittsburg County, State of Oklahoma for a variety store and/or any other small to medium sized commercial establishment consistent with Section 62-272 that provides shopping and service outlets for the convenience of the neighboring residential areas. (*Jayne Clifton, Community Development Director*)

Executive Summary

Motion to act upon and approve the Resolution for a Use Permit After Review in the Wade Watts Corridor Development for the use of the subject property as a variety store and/or any other small to medium sized commercial establishment consistent with Section 62-272 that provides shopping and service outlets for the convenience of the neighboring residential areas.

Director Clifton addressed the Council explaining that this property was located in the Wade Watts Corridor overlay area, it included three (3) different parcels that would provide 25,200 square feet. She stated that the applicant has obtained the property in September of 2023 and hoped to construct a new 2,700 square foot building for a plant nursery with retail sales. She added that the Planning Commission had met on January 16, 2024 and unanimously voted to recommend the applicant's request for a Use Permitted After Review be approved as presented.

After a brief discussion regarding the applicant and the proposed business a motion to approve RESOLUTION NO. 24-03, granting a Use Permitted After Review land use acceptance in the Wade Watts Corridor Development District was made by Councilman Beaty. The motion was seconded by Councilman Roden, and the vote was taken as follows:

AYE: Councilmembers Beaty, Roden, Smith, Few, Stone, Boatright & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

2. Discussion and possible action of the sole RFQ packet received with regard to the sewer extension at Steven W. Taylor Industrial Park. (*Michael J. Allen, Grants Administrator*)

Executive Summary

Motion to approve Infrastructure Solutions Group, LLC (ISG) as the engineering firm who will project manage the sewer extension.

Michael Allen, Grants Administrator addressed the Council explaining that even with adhering to the Competitive Bid Act and advertising with local media and submitting the packet to several engineering firms, only one response was received. He commented that ISG was well known to the City and was familiar with the location and project scope of work. He added that while remaining within the guidelines of the Competitive Bid Act, the City needed to do something to encourage participation to its' requests for bids and proposals.

Mayor Browne asked the City Attorney if there was an issue with only receiving one response. Attorney Hammons stated that this item was for professional services, which did not require an RFQ. He added that the City had exceeded State standards.

A motion to approve RESOLUTION NO. 24-04, approving the retention of Infrastructure Solutions Group, LLC (ISG) as the engineering firm who will project manage the sewer extension was made by Councilman Few. The motion was seconded by Councilman Boatright, and the vote was taken as follows:

AYE: Councilmembers Few, Boatright, Beaty, Smith, Stone, Roden & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

3. Discussion and possible action accepting the Single Audit for FYE June 30-2023. (*Sherri Swift, Chief Financial Officer*)

Executive Summary

Motion to accept the Single Audit for the Fiscal Year Ending June 30, 2023, for the City of McAlester.

Mayor Browne stated that this was the item from the Special Meeting that he had missed the vote on. He asked if there were any questions.

A motion to accept the Single Audit for the Fiscal Year ending June 30, 2023, for the City of McAlester was Councilman Boatright and seconded by Councilman Beaty. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Boatright, Beaty, Few, Stone, Roden, Smith & Mayor Browne

NAY: None

Mayor Browne declared the motion carried.

4. Discussion and possible action for accepting the total bid amount of \$120,022 from Garrett Demolition INC. and authorize the Mayor to sign the Notice of Award and Contract for the flight service station building demolition and site clearance services at the McAlester Regional Airport, Oklahoma. *(Stephanie Mervine, Economic Development Director)*

Executive Summary

Staff recommends the Mayor to sign the Notice of Award and contract to Garrett Demolition Inc. for the flight service station building demolition & site clearance services at the McAlester Regional Airport.

Director Mervine addressed the Council explaining that this item was one of the projects sited in the PREP/SITE Grant and was for the demolition of the flight service station building and site clearance. She stated that bidding process was followed, references were checked, and staff recommended that the Mayor sign the Notice of Award and contract to Garrett Demolition, Inc. She added that the award was not going to the lowest bidder, but awarded the lowest most reasonable bid due to having them removed from consideration for history of performance.

After a brief discussion concerning the grant funding and clarification that the motion should state why the lowest bid was not accepted, a motion to accept the bid from Garrett Demolition, Inc. for the flight service station demolition and site clearance in the amount of \$120,022.00 and noting that the lowest bidder was not accepted due to history of performance was made by Mayor Browne. The motion was seconded by Councilman Roden, and the vote was taken as follows:

AYE: Councilmembers Roden, Beaty, Smith, Few, Stone, Boatright & Mayor Browne

NAY: None

Mayor Browne declared the motion carried.

5. Discussion regarding tourism funding for Hunting & Fishing Extravaganza. *(John Browne, Mayor)*

Executive Summary

Discussion Only.

Curtis Bullick, 926 E. Hereford Lane addressed the Council concerning his request for tourism funding assistance to put on a Hunting and Fishing Extravaganza at the Southeast Oklahoma Expo Center. He stated that during his conversations with Billy Sumner, Tourism Manager, he was never promised any funding. He commented that at his last meeting with Mr. Sumner, he was told that the decision to not financially support the event. He then reviewed all of the steps that had been taken to promote the event, the survey that participants had completed and asked that the Council reconsider the decision not to support the event.

Mayor Browne explained that the decision was not within the Council's prerogative, it fell within the daily activities of the City.

Manager Andren stated that the decision had ultimately been made by his office and after reviewing the information that was furnished did not meet the requirements for funding.

No action was taken on this item.

New Business

Any matter not known, or which could not have been reasonably foreseen prior to the time of posting the Agenda in accordance with Sec. 311.9, Title 25, Oklahoma State Statutes.

There was no new business.

City Manager's Report

- Report on activities for the past two weeks.

Manager Andren commented that staff continued to watch the finances of the City and ensure that the City stays within the Budget. He added that the financial update would be presented at the next meeting.

Remarks and Inquiries by City Council

Councilman Roden stated that he asked that the Hospital and Cancer Center be put on the agenda for discussion. He commented that he was later informed that the topic would have to be discussed in Executive Session and now it was not on the agenda.

Mayor Browne stated that it was on the agenda as a proposed Executive Session item.

Councilman Roden also inquired about the status of a legal opinion that he had requested around the first of January.

Attorney Hammons explained that the opinion was in the City Clerk's office.

Councilman Roden then commented about the water issue at Electric and 7th Street and the dangerous situation it was causing during frigid temperatures.

Manager Andren stated that the matter was still being worked out.

Councilman Roden inquired as to why the Hospital and Cancer Center needed to be in Executive Session.

Mayor Browne stated it was because it dealt with economic development.

Attorney Hammons stated that the Council would go into Executive Session to discuss the matter and then return to open session.

Councilman Roden asked if he could cancel the Executive Session. Attorney Hammons stated that it would be up to the Council to go into Executive Session.

Councilman Boatright commented that the grow house odor in the S. 2nd Street area was still an issue. He then inquired about the sewer line behind his property and asked how far west it went and if water could be getting into the sewer line causing problems.

Councilmen Smith, Few, Stone, and Beaty did not have any comments or inquiries for the evening.

Mayor's Comments and Committee Appointments

Mayor Browne reported that former Mayor Harrison and his wife had graciously donated \$500,000.00 to the McAlester Public Library over the next five (5) years. He commented that that was an incredible thing to come from a private citizen. He then informed the Council that former Mayor Tim Wynn had passed away recently. He added that Mayor Wynn had given him great advice in the past.

Recess Council Meeting

Vice-Mayor Smith moved to recess the Regular Meeting and convene the Authorities. The motion was seconded by Councilman Boatright. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Smith, Boatright, Roden, Beaty, Few, Stone & Mayor Browne
NAY: None

Mayor Browne declared the motion carried, and the meeting was recessed at 7:00 P.M.

Reconvene Council Meeting

The Regular Meeting was reconvened at 7:02 P.M.

Councilman Roden moved to cancel the Executive Session. The motion was seconded by Vice-Mayor Smith.

Before the vote, Councilman Roden stated that he believed this matter needed to be discussed in open session.

Attorney Hammons clarified that if the Council chose not to go into Executive Session, they would still be permitted to discuss the matter tonight. He stated that the discussion would be limited, but the Council could discuss the item. He then clarified that a vote yes would be to not convene in Executive Session and a vote no would be to possibly convene into Executive Session. It would take a second vote.

There was no further discussion, and the vote was taken as follows:

AYE: Councilmembers Smith, Stone, Roden, Boatright & Beaty

NAY: Councilman Few & Mayor Browne

Mayor Browne declared the motion carried.

Executive Session

Recess into Executive Session in compliance with Section Title 25 Section 307 C.11, et seq. Oklahoma Statutes, to wit:

- 1) Pursuant to 25 OS 307 (C) (11) for the purposes of conferring on matters pertaining to economic development, including the transfer of property, financing, or the creation of a proposal to entice a business to locate within their jurisdiction if public disclosure of the matter discussed would interfere with the development of products or services or if public disclosure would violate the confidentiality of the business.

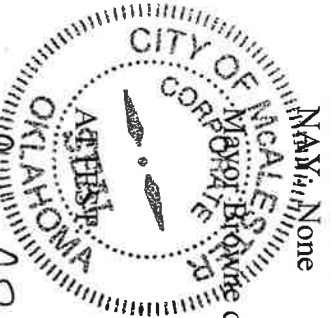
Adjournment

Mayor Browne moved for the meeting to be adjourned. The motion was seconded by Vice-Mayor Smith. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Smith, Few, Stone, Roden, Boatright, Beaty & Mayor Browne

NAY: None

Mayor Browne declared the motion carried, and the meeting was adjourned at 7:04 P.M.





Becky Cole, Executive Assistant



John Browne, Mayor